

Merchant Agreement

This Agreement is made on 14 March 2019 between arvato Financial Solutions, Gütersloher Straße 123, 33415 Verl, Germany (hereinafter "AFS") and Nordlicht Möbelhaus GmbH, Hafenstraße 12, 20457 Hamburg, Germany (hereinafter "Merchant"), together the "Parties".

1. Scope of Services

AFS shall provide the services described in Annex 1 (the "Services") to Merchant in accordance with this Agreement and the service levels agreed therein. Merchant shall provide all information reasonably required for the performance of the Services.

2. Term and Termination

This Agreement enters into force on the Effective Date and shall run for an initial term of twenty-four (24) months. It renews automatically for successive periods of twelve (12) months unless terminated by either Party with three (3) months' written notice prior to the end of the then-current term. The right to terminate for cause remains unaffected.

3. Fees and Payment

In consideration of the Services, Merchant pays the remuneration listed in the price schedule. Payment is due fourteen (14) days after invoice date. All amounts are exclusive of value added tax.

4. Limitation of Liability

Except in cases of intent or gross negligence, the aggregate liability of either Party under this Agreement shall be limited to the fees paid in the twelve (12) months preceding the event giving rise to the claim. Neither Party shall be liable for indirect or consequential damages, including loss of profit.

5. Confidentiality

The Parties undertake to treat as strictly confidential all business and trade secrets disclosed to them and not to make them available to third parties without prior written consent. Disclosure to professional advisers bound by statutory secrecy is permitted.

6. Data Protection

The Parties shall comply with applicable data protection law, in particular Regulation (EU) 2016/679 and the German Federal Data Protection Act (BDSG). Personal data shall be processed only for the purposes of this Agreement and deleted when no longer required.

7. Governing Law

The laws of Germany apply to this Agreement and to all claims arising from or in connection with it, to the exclusion of its conflict of law rules.

8. Dispute Resolution

All disputes arising out of or in connection with this Agreement shall be finally settled under the Arbitration Rules of the German Arbitration Institute (DIS) by three arbitrators. The seat of arbitration is Frankfurt am Main.

9. Force Majeure

Neither Party shall be liable for any failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, war, pandemics or governmental action, provided that the affected Party notifies the other without undue delay.

10. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

11. Audit Rights

Merchant may, upon thirty (30) days' written notice and no more than once per calendar year, audit AFS's compliance with this Agreement during normal business hours. AFS shall provide reasonable assistance and access to relevant records.

12. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For arvato Financial Solutions:

Managing Director

For Nordlicht Möbelhaus GmbH:

Authorised Signatory